

UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA
JACKSONVILLE DIVISION

FILED

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CLERK, US DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA
JACKSONVILLE, FLORIDA

CHRISTOPHER FELKER and
LINDA FELKER

Plaintiffs,

v.

CASE NO: 3:10 CV-459-J-32TEM

ANDREA ZAMPATTI

Defendant.

_____ /

COMPLAINT AND DEMAND FOR JURY TRIAL

Plaintiffs sue Defendant and allege:

Jurisdiction and Venue

1. The parties to this action have complete diversity of citizenship and the amount in controversy is greater than \$75,000.
2. Pursuant to 28 U.S.C. § 1332, the Court has diversity jurisdiction over this action.
3. Venue is proper in this district because a substantial part of the events or omissions giving rise to the claims alleged herein occurred within this district.

Identity of the Parties

4. This is an action for damages arising out of injuries sustained by Christopher Felker on or about April 23, 2010.
5. At all times material, Plaintiff Linda Felker was the lawful spouse of Plaintiff Christopher Felker.
6. At all times material, Plaintiffs Christopher Felker and Linda Felker were citizens of the State of Florida.
7. At all times material, Defendant Andrea Zampatti was a citizen of the State of Georgia.

General Allegations

8. On or about April 23, 2010, Defendant Andrea Zampatti was operating her automobile within St. Johns County, Florida, when her vehicle struck Plaintiff Christopher Felker.
9. Christopher Felker was riding his bicycle at the time he was struck by Defendant Andrea Zampatti's vehicle.
10. Christopher Felker was a lawful pedestrian at the time he was struck by Defendant Andrea Zampatti's vehicle.

COUNT I -- Negligence

11. The allegations of paragraphs 1-10 are adopted by reference.
12. As the operator of a motor vehicle, Defendant Andrea Zampatti owed a duty to a) maintain a proper lookout, b) exercise reasonable care to avoid injury to others.
13. Defendant Andrea Zampatti breached her duties by a) failing to maintain a proper lookout; and b) failing to exercise reasonable care in the operation of her motor vehicle.
14. As a direct and proximate result of Defendant's negligence, Plaintiff Christoper Felker has suffered great bodily injury and resulting pain and suffering, expense of hospitalization, medical care and treatment, aggravation of a pre-existing condition, disability, disfigurement, mental anguish, and loss of capacity for the enjoyment of life.
15. Christopher Felker's injuries are either permanent or continuing in nature, and he will continue to suffer these losses in the future.

COUNT II -- Battery

16. The allegations of paragraphs 1-10 are adopted by reference.
17. Defendant Andrea Zampatti intentionally struck Plaintiff Christopher Felker with her motor vehicle.

18. As a direct and proximate result of being struck by Defendant's motor vehicle, Plaintiff Christopher Felker has suffered great bodily injury and resulting pain and suffering, expense of hospitalization, medical care and treatment, aggravation of a pre-existing condition, disability, disfigurement, mental anguish, and loss of capacity for the enjoyment of life.

COUNT III – Loss of Consortium (negligence)

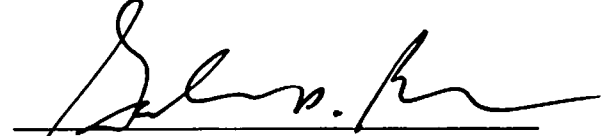
19. The allegations of paragraphs 1-15 are adopted by reference.
20. As a further direct and proximate result of the injuries suffered by Christopher Felker, Linda Felker has been and continues to be deprived of the care, companionship, consortium, and services of her husband.

COUNT IV – Loss of Consortium (battery)

21. The allegations of paragraphs 1-10 and 16-18 are adopted by reference.
22. As a further direct and proximate result of the injuries suffered by Christopher Felker, Linda Felker has been and continues to be deprived of the care, companionship, consortium, and services of her husband.

WHEREFORE, Plaintiffs demand judgment against Defendant for compensatory damages, punitive damages, all available costs, interest, and attorney fees, and trial by jury.

SPOHRER & DODD, P.L.

A handwritten signature in black ink, appearing to read "Galen D. Bauer", is written over a horizontal line.

GALEN D. BAUER, ESQ.

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